

The Assam Foodstuffs (Prohibition of Withholding From Sale) Control Order, 1969

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[Rule THE-ASSAM-FOODSTUFFS-PROHIBITION-OF-WITHHOLDING-FROM-SALE-CONTROL-ORDER-1969 of 1969](#)

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[Notification No. SDB 434/69/2. - In exercise of the powers conferred by sub Clause \(e\), \(h\), and \(j\) of sub-section \(2\) of Section 3 of the Essential Commodities Act, 1955 \(Central Act](#)

[No. 10 of 1955](#)

[\) read with the Notification of the Government of India in the Ministry of Food and Agriculture \(Department of Food\), No. GSR-1961, dated 24-7-1967, and GSR 1508, dated 30-9-1967, the Governor of Assam hereby makes the following Order, namely :](#)

1.

Short title, extent and commencement.

(a)

This Order may be called the "Assam Foodstuffs (Prohibition of Withholding from Sale) Control Order, 1969.

(b)

It shall extend to the whole of the State of Assam.

(c)

It shall come into force at once.

2.

Definitions.

- In this Order, unless there is anything repugnant in the subject or context-

(a)

"Foodstuffs" means pulses, mustard oil, other edible oils, salt, rice, sugar and any other class of commodities which the Government may, by notified order, declare to be "Foodstuffs" for the purposes of this Order.

(b)

"Deputy Commissioner" includes the Additional Deputy Commissioner and the Sub-Divisional Officer within their respective jurisdictions.

(c)

"Person" means a person dealing in foodstuffs.

3.

Prohibition of withholding from sale.

- For the maintenance of supplies and services of foodstuffs to the life of the community no person shall withhold from sale foodstuffs ordinarily kept for sale.

4.

Power to call for information, search and seizure, etc.

- The Deputy Commissioner may-

(a)

issue direction to a person to maintain and produce for inspection such books, accounts and records relating to his business in foodstuffs;

(b)

issue direction to any person to furnish information regarding purchase, sale and stock in hand of the foodstuffs ;

(c)

enter, search, seize or authorise in writing any person to enter and search any premises, vehicle or place where there is reason to believe that the stock on foodstuffs had been stored in contravention of this Order and to seize such stock, any books of accounts and documents which, in his opinion would be useful for, or relevant to, any proceeding under this Act.

5.

Sanction for prosecution.

- No prosecution in respect of an alleged contravention of the provisions of this Order shall be instituted without the previous written sanction of the Deputy Commissioner.

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